

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ORUNMILA ODUTOLA,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER EDWIN
AYALA, BADGE NUMBER 013186, POLICE
OFFICER JULIO NUNEZ, BADGE NUMBER 028211,
POLICE OFFICER JOSE RODRIGUEZ, BADGE
NUMBER 015659, AND SERGEANT DOUGLAS
KAUTTER, BADGE NUMBER UNKNOWN,

Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates Bronx
County as the place of trial.

Basis of venue is
place of occurrence.

SUMMONS

Plaintiff resides at
1276 East 224th Street
Bronx, New York 10466

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
March 1, 2013

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
ORUNMILA ODUTOLA
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER EDWIN AYALA, BADGE
NUMBER 013186,
POLICE OFFICER JULIO NUNEZ, BADGE
NUMBER 028211,
POLICE OFFICER JOSE RODRIGUEZ, BADGE
NUMBER 015659,
SERGEANT DOUGLAS KAUTTER, BADGE
NUMBER UNKNOWN, c/o
40th Precinct
257 Alexander Avenue
Bronx, New York 10454

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POLICE OFFICER JOSE RODRIGUEZ, BADGE
NUMBER 015659, AND SERGEANT DOUGLAS
KAUTTER, BADGE NUMBER UNKNOWN,

VERIFIED COMPLAINT

Defendants.

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Plaintiff ORUNMILA ODUTOLA by and through his attorneys, TRACIE A. SUNDACK
& ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE
OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ,
BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER
015659, and SERGEANT DOUGLAS_KAUTTER, BADGE NUMBER UNKNOWN,
respectfully alleges as follows:

1. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still
is a municipal corporation duly organized and existing under and by virtue of the General
Municipal Law of the State of New York.

2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents
servants and employees operated, maintained and controlled the New York City Police
Department, including all the police officers thereof.

3. That at all times hereinafter mentioned, Defendant POLICE OFFICER EDWIN
AYALA, BADGE NUMBER 013186, was employed by Defendant CITY OF NEW YORK as a
police officer.

4. That at all times hereinafter mentioned, Defendant POLICE OFFICER EDWIN
AYALA, BADGE NUMBER 013186, acted within the scope of his employment for Defendant

CITY OF NEW YORK.

5. That at all times hereinafter mentioned, Defendant POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County and City of New York, and under the authority of his office as a police officer for said city and county.

6. That at all times hereinafter mentioned, Defendant POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, was employed by Defendant CITY OF NEW YORK as a police officer.

7. That at all times hereinafter mentioned, Defendant POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, acted within the scope of his employment for Defendant CITY OF NEW YORK.

8. That at all times hereinafter mentioned, Defendant POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County and City of New York, and under the authority of his office as a police officer for said city and county.

9. That at all times hereinafter mentioned, Defendant POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, was employed by Defendant CITY OF NEW YORK as a police officer.

10. That at all times hereinafter mentioned, Defendant POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, acted within the scope of his employment for Defendant CITY OF NEW YORK.

11. That at all times hereinafter mentioned, Defendant POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County and City of New York, and under the authority of his office as a police officer for said city and county.

12. That at all times hereinafter mentioned, Defendant SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, was employed by Defendant CITY OF NEW

YORK as a police officer.

13. That at all times hereinafter mentioned, Defendant SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, acted within the scope of his employment for Defendant CITY OF NEW YORK.

14. That at all times hereinafter mentioned, Defendant SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County and City of New York, and under the authority of his office as a police officer for said city and county.

15. That on or about December 29, 2011, at approximately 9:40 a.m., Plaintiff ORUNMILA ODUTOLA was lawfully present in 516 Wales Avenue (Apartment 2) in the County of Bronx, City and State of New York, when he was accosted by members of the New York City Police Department including Defendants POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN.

16. That at the aforementioned time and place, Defendants POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, without any just cause or provocation, willfully, wantonly, maliciously, and recklessly assaulted, attacked and verbally abused Plaintiff ORUNMILA ODUTOLA.

17. That at the aforementioned time and place, Defendants POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, handcuffed Plaintiff ORUNMILA ODUTOLA and placed him under arrest.

18. That, at the aforementioned time and place, after Defendants POLICE OFFICER

EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, handcuffed Plaintiff ORUNMILA ODUTOLA, the Defendants continued their unjust and unprovoked assault.

19. That, as a result of this unprovoked assault, Plaintiff ORUNMILA ODUTOLA sustained injuries including, *inter alia*, blunt head trauma, as well as lacerations and bruises to the face, head, neck, back, shoulders and wrists.

20. That on or about March 13, 2013, within 90 days of the happening of the accident, but more than 30 days prior to the commencement of this action, Plaintiff ORUNMILA ODUTOLA duly presented, served, and filed a Notice of Claim, in writing, upon Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

21. That more than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN.

22. That, upon information and belief, Defendant CITY OF NEW YORK waived its right to a municipal hearing regarding the claims of Plaintiff ORUNMILA ODUTOLA.

23. This action is commenced within one year and ninety days after the cause of action arose.

**AS AND FOR A FIRST CAUSE OF ACTION UNDER
NEW YORK STATE LAW FOR ASSAULT**

24. Plaintiff ORUNMILA ODUTOLA repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

25. The aforementioned acts of Defendants POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211,

POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, placed Plaintiff ORUNMILA ODUTOLA in apprehension of imminent harmful and offensive bodily contact.

26. As a result of the conduct of Defendants POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, Plaintiff ORUNMILA ODUTOLA has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

AS AND FOR A SECOND CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR BATTERY

27. Plaintiff ORUNMILA ODUTOLA repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

28. Defendants POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, touched Plaintiff ORUNMILA ODUTOLA in a harmful and offensive manner.

29. Defendants CITY OF NEW YORK, POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, did so without privilege or consent from Plaintiff ORUNMILA ODUTOLA.

30. As a result of the conduct of Defendants POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, Plaintiff ORUNMILA ODUTOLA has suffered physical pain and mental anguish, together with shock, fright, apprehension,

embarrassment and humiliation.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

31. Plaintiff ORUNMILA ODUTOLA repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

32. The level of force employed by Defendants POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, was objectively unreasonable and in violation of Plaintiff ORUNMILA ODUTOLA's constitutional rights.

33. As a result of the aforementioned conduct of Defendants POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, Plaintiff ORUNMILA ODUTOLA was subjected to excessive force and sustained physical injuries.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY**

34. Plaintiff ORUNMILA ODUTOLA repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

35. Defendants POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

36. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to: (a) using force on individuals who are not resisting lawful authority; and (b) using force in an

unreasonable, unnecessary, and unjustified manner.

37. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff ORUNMILA ODUTOLA.

38. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff ORUNMILA ODUTOLA as alleged herein.

39. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff ORUNMILA ODUTOLA as alleged herein.

40. Defendants POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff ORUNMILA ODUTOLA's constitutional rights.

41. All of the foregoing acts by defendants deprived Plaintiff ORUNMILA ODUTOLA of federally protected rights including, but not limited to, the right:

- A. Not to have excessive force imposed upon him;
- B. To be free from unlawful search;
- C. To receive equal protection under the law.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE**

42. Plaintiff ORUNMILA ODUTOLA repeats, reiterates and realleges each and every allegation contained in this complaint.

43. Each and every individual Defendant police officer had an affirmative duty to intervene on Plaintiff ORUNMILA ODUTOLA's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

44. As a result of the aforementioned conduct of the individual Defendant police officers, Plaintiff ORUNMILA ODUTOLA's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION**

45. Plaintiff ORUNMILA ODUTOLA repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

46. That Defendant CITY OF NEW YORK, was careless and reckless in hiring and retaining as and for its employees, Defendants POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the defendant employees who lacked the mental capacity and the ability to function as employees of Defendant CITY OF NEW YORK; in that the Defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said Defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

47. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION**

48. Plaintiff ORUNMILA ODUTOLA repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

49. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, in the exercise of their employment functions, and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff ORUNMILA ODUTOLA. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

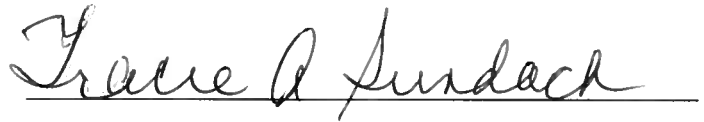
50. The failure of Defendant CITY OF NEW YORK, to train, supervise, discipline or in any other way control Defendants POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, in the exercise of their employment functions and their failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff ORUNMILA ODUTOLA.

51. As a result of the foregoing, Plaintiff ORUNMILA ODUTOLA is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00)

WHEREFORE Plaintiff ORUNMILA ODUTOLA demands judgment against

Defendants CITY OF NEW YORK, POLICE OFFICER EDWIN AYALA, BADGE NUMBER 013186, POLICE OFFICER JULIO NUNEZ, BADGE NUMBER 028211, POLICE OFFICER JOSE RODRIGUEZ, BADGE NUMBER 015659, and SERGEANT DOUGLAS KAUTTER, BADGE NUMBER UNKNOWN, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
March 1, 2013

A handwritten signature in cursive script, reading "Tracie A. Sundack", written over a horizontal line.

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
ORUNMILA ODUTOLA
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } ss.:

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
March 1, 2013



TRACIE A. SUNDACK